Shri Dhirendra Kaushik And 2 Others vs State Of U.P. And Another on 3 April, 2025

HIGH COURT OF JUDICATURE AT ALLAHABAD

?Neutral Citation No. - 2025:AHC:47081

Court No. - 75

Case :- APPLICATION U/S 528 BNSS No. - 32423 of 2024

Applicant :- Shri Dhirendra Kaushik And 2 Others

Opposite Party :- State of U.P. and Another

Counsel for Applicant :- Ishir Sripat

Counsel for Opposite Party :- G.A.,Siddharth Agrawal

Hon'ble Arun Kumar Singh Deshwal,J.

1. Heard Sri Ishir Sripat, learned counsel for the applicants; Sri Siddharth Agrawal, learned counsel for opposite party No.2 and Sri Rajeev Kr. Singh, learned A.G.A. for the State.

2. The instant application has been filed seeking quashing of the summoning order dated 11.4.2017 as well as entire proceeding in pursuance of case crime No. 356 of 2016, under Section 498A, 323, 504, 506 IPC and 3/4 D.P. Act, P.S. Mahila Thana, District Ghaziabad.

3. The fact, giving rise to the present case, is that a matrimonial discord between applicant No.1 and opposite party No.2 has culminated into the impugned proceeding.

4. Learned counsel for the applicant as well as opposite party No.2 jointly submit that the parties have settled their dispute before the Mediation Centre, Allahabad High Court, Lucknow Bench, Lucknow, in pursuance of the reference order dated 5.10.2023 passed in Application u/s 482 No.

4660 of 2023. A copy of the settlement agreement dated 29.5.2024, entered into between the parties, has been annexed at page No. 111 of the affidavit. A request is, therefore, made that the impugned proceeding may be quashed on the basis of the aforesaid settlement agreement.

5. Learned A.G.A. has no objection and he submits that the parties have settled their dispute through mediation centre.

6. Considering the submissions of learned counsel for the parties and on perusal of the record, it is clear that by the settlement agreement dated 29.5.2024, the parties have settled their dispute before the Mediation Centre, Allahabad High Court, Lucknow Bench, Lucknow. Therefore, continuation of the impugned proceeding will be travesty of justice. Paragraph No.6 of the settlement agreement dated 29.5.2024 is quoted as under:-

> "6. The following settlement has been arrived at between the Parties hereto:-
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> A. That both the parties namely Dhirendra Kaushik (First Party/husband) and Beenu Sharma (Second Party/wife) have mutually agreed to dissolve their marriage and to live separately in future and for the purpose of dissolution of their marriage the parties have already filed a petition for divorce with mutual consent U/S 13-B Hindu Marriage Act, 1955 before Family Court, Ghaziabad bearing R. S. No. 1458 of 2024. Both the parties herein undertake to appear before the concerned Court on the date(s) fixed and would make their earnest endeavour to obtain a decree of divorce in terms of this settlement at the earliest.
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> B. That the First Party has agreed to pay to the Second Party and the Second Party has agreed to receive from the First Party a total sum of Rs.22,00,000/- (Twenty Two Lacs only) towards one time full and final settlement of all the claims against First Party including the claim for temporary/permanent alimony and expenses for maintenance & welfare of their daughter namely Anshika, who was born out of the wedlock of both the parties.
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> C. That both the parties have agreed that the aforesaid amount Rs.22,00,000/- (Twenty Two Lacs only) would be paid to the Second Party/wife in two installments. The first installment of Rs. 11,00,000/-(Eleven Lacs only) will be paid by the First Party/husband to the Second Party/wife on the date of entering into settlement agreement before the Mediation and Conciliation Centre, Allahabad High Court, Lucknow in the shape of Demand Drafts to be prepared in such a manner that an amount of Rs.5,50,000/-(Five Lacs Fifty Thousand only) be paid to the Second Party/wife- Beenu Sharma @ Beenu Tiwari and Rs. 5,50,000/-(Five Lacs Fifty Thousand only) be paid to their daughter Anshika. The second installment of Rs. 11,00,000/- (Rupees Eleven Lacs Fifty Thousand) will be paid by the First Party/husband to the Second Party/wife in the shape of Demand Drafts be prepared in such a manner that an amount of Rs 5,50,000/-(Five Lacs Fifty Thousand only) be paid to the Second Party/wife-Beenu Sharma @ Beenu Tiwari and

Rs.5,50,000/-(Five Lacs Fifty Thousand only) be paid to their daughter Anshika at the time of second motion of the joint petition for divorce bearing R.S. No. 1458 of 2024 U/S 13-B Hindu Marriage Act, 1955 before Principal Judge, Family Court, Ghaziabad.

D. That in accordance with clause 6 (C), the First Party has handed over two Demand Drafts to the Second Party today ie 29.05.2024. The Second Party acknowledges the receipt of the same. The details of the Demand Drafts are mentioned hereunder:-

(I) D. D. No. 902635 dated 17.05.2024 amounting to Rs.5,50,000/- (Five Lacs Fifty Thousand only) drawn on State Bank of India in favour of Beenu Tiwari Canara Bank AC No. 110105274497.

(II) D. D. No. 902648 dated 20.05.2024 amount to Rs.5,50,000/-(Five Lacs Fifty Thousand only) drawn on State Bank of India in favour of Anshika D/O Beenu Tiwari E. That the parties have agreed that the custody of their daughter Anshika would remain with the Second Party and it would be the responsibility of the Second Party to bear all the expenses to be incurred towards bringing up of Anshika viz education, daily needs, marriage etc. F. That the First Party has agreed that he shall not claim the custody of Anshika in future.

G. That the parties have agreed to withdraw/not press/not to pursue the cases filed against each other and their family members. The details of the cases are mentioned hereunder:

1. FIR No. 356 of 2016 under Sections 323, 504, 506, 376, 511 of Indian Penal Code Government of U. P. Vs. Dhirendra Kaushik and Other) Police Station Sahibabad, District Ghaziabad.

2. FIR number 2131/2016 under sections 498, 323, 354, 354, 354 N, 504, 506 of the Indian Penal Code, Government of U. P. Vs. Dhirendra Kaushik and Others, Police Station- Sahibabad District Ghaziabad.

3. Case No. 2830 of 2017 in Case Crime No. 1563 of 2017 (Government of U. P. Vs. Yagyaval Sharma and Other) Police Station-Sahibabad, District-Ghaziabad.

4. FIR No. 2444/2017 (Government Of U. P. Vs. Deep Sharma and Others) Police Station Sahibabad, District-Ghaziabad.

5. Complaint number 13966 year 2017 Binu Sharma vs Vs. Dhirendra Kaushik and Others, Police Station-Sahibabad, District-Ghaziabad.

6. Case number 15965 year 2017 (Binu Sharma Vs. Deep Sharma and others) Police Station-Sahibabad District-Ghaziabad.

7. NCR Report No. 310 Year 2017 Section 323, 506 Indian Penal Code Government vs. Dhirendra Kaushik Police Station Sahibabad District Ghaziabad.

8. Complaint number 874 year 2018 (Binu vs. Dhirendra Kaushik and Others), U/S 125 Cr.P.C. Police Station Sahibabad District Ghaziabad.

9. Case number 384 year 2017 (Binu Sharma vs. Dhirendra Kaushik and Others) Police station Sahibabad District Ghaziabad.

10. Complaint No. 585 of 2019 (Binu Vs. Dhirendra Police Station- Sahibabad, District-Ghaziabad.

11. Case No. 4408 of 2017, (Binu v. Dhirendra Kaushik and others), Police Station-Sahibabad, District-Ghaziabad.

12. Case No. 4413 of 2017 (Binu Vs. Dhirendra Kaushik and others) Police Station-Sahibabad, District-Ghaziabad.

13. Case number 3694 of 2016, (Mrs. Binu Vs. Dhirendra Kaushik and Others) under Domestic Violence Act, Police Station-Sahibabad, District-Ghaziabad, whose revision number 3834 of 2022 is pending in the Honorable High Court, Allahabad.

14. FIR No. 1564 of 2017 under sections 323, 354, 354A of the Indian Penal Code vs. Binu Sharma, Police Station Sahibabad, District Ghaziabad.

15. Case No. 2217 2017 (Government of U.P. Vs. Binu Sharma), Police Station Sahibaba District-Ghaziabad.

H. That the Second Party has agreed that she shall not have any objection if the Hon'ble Court decides the APPLICATION U/s 482 No.4660 of 2023 (Dhirendra Kaushik & Others Vs State o U.P. & Another) in terms of this settlement agreement.

I. In addition to above mentioned case, if any other case(s) is pending between the parties, both the parties shall not have any objection if the casets) is disposed of by the Hon'ble Court in terms of this Settlement Agreement.

J. That it is also agreed between the parties that henceforth no case will be instituted by them against each other or any of their respective family members in future in the form of criminal or civil proceedings in respect of any dispute arising out of their marriage or any matter incidental thereto.

K. That both the parties shall be bound by the terms and conditions of this Settlement in strict sense. In case of any default, the party committing the default shall be liable for playing fraud with the Court hence for contempt of the Court. The Second Party has agreed that in case she fails to cooperate in the divorce proceedings, she shall be bound to return to the First Party the entire

money received by her from the First Party along with interest @ 9% pa. with effect from the date of receipt of the amount/installment(s) and till the date of its actual payment to the First Party and the First Party will be at liberty to reopen his cases decided by theH on'ble Court in terms of this Settlement Agreement by moving an appropriate application before competent Court Forum The First Party has agreed that in case he fails to attend and cooperate in the divorce case, the amount received by the Second Party from the First Party shall not be returned by the Second Party and the Second Party shall be at liberty to reopen her case(s) decided by the Hon'ble Court in terms of this Settlement Agreement by moving an appropriate application before competent Court/Forum."

7. Thus, in view of the well settled principles of law as laid down by the Hon'ble Apex Court reported in 2003(4) SCC 675 (B.S. Joshi Vs. State of Haryana), J.T. 2008(9) SC 192 (Nikhil Merchant Vs. Central Bureau of investigation and another), (2012) 10 SCC 303 (Gian Singh Vs. State of Punjab), (2014) 9 SCC 653 (Yogendra Yadav and others Vs. State of Jharkhand) and also (2014) 6 SCC 466 (Narendra Singh Vs. State of Punjab), and in view of the settlement agreement dated 29.5.2024, the proceeding of the aforesaid case is hereby quashed.

8. Accordingly, the application stands allowed.

Order Date :- 3.4.2025 Vandana